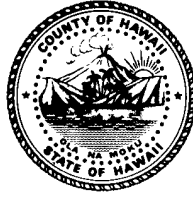


HOLEKA GORO INABA
Chair & Presiding Officer

DENNIS "FRESH" ONISHI
Vice Chair



MICHELLE M. GALIMBA
JAMES E. HUSTACE
JENN KAGIWADA
MATT KĀNEALI'I-KLEINFELDER
ASHLEY L. KIERKIEWICZ
HEATHER L. KIMBALL
REBECCA VILLEGAS

COUNTY COUNCIL

*County of Hawai'i
Hawai'i County Building
25 Aupuni Street
Hilo, Hawai'i 96720*

26th Session

Hawai'i County Building
25 Aupuni Street
Hilo, Hawai'i

November 5, 2025

9:00 a.m.

Notice is hereby given that the Hawai'i County Council will be conducting this meeting via interactive conference technology (ICT) pursuant to Hawai'i Revised Statutes §92-3.5. Council Members will be participating via ICT at the:

- **Kona Council Chambers, West Hawai'i Civic Center, 74-5044 Ane Keohokālole Highway, Building A**
- Members of the public may also attend from this location.

Public attendance via Courtesy Site is available at the following locations:

- **Ocean View Community Association, 92-8924 Leilani Circle;**
- **Pāhoa Council Office, 15-2879 Pāhoa Village Road; and**
- **Waimea Council Office, Parker Square, 65-1279 Kawaihae Road, Suite 109.**

If a Courtesy Site is unavailable and/or participation is disrupted, the scheduled meeting will continue.

Oral Public Testimony via Zoom: To provide oral testimony via Zoom, email councilremotetestimony@hawaiicounty.gov or call (808) 961-8255 to complete the registration process and obtain meeting login information. Please contact our office to register by 12:00 noon, **Tuesday, November 4, 2025.**

Submitting Written Testimony: To ensure timely delivery to Council Members prior to the meeting, written testimony must be submitted no later than 12:00 noon on **Tuesday, November 4, 2025**, by: (1) email to counciltestimony@hawaiicounty.gov; (2) facsimile to (808) 961-8912; or (3) mail to the County Clerk's Office in Hilo at 25 Aupuni Street, Hilo, Hawai'i, 96720. All written testimony, regardless of time of receipt, will be made part of the permanent record. Please submit separate testimony for each item.

Hawai'i County is an Equal Opportunity Provider and Employer

INVOCATION

Dr. Karen Schuster of Spiritual Assembly of the Baha'is of South Hilo

ORDER OF BUSINESS

CALL TO ORDER

ROLL CALL

PLEDGE OF ALLEGIANCE

**PETITIONS, MEMORIALS, CERTIFICATES OF MERIT, AND EXPRESSIONS OF
CONDOLENCE**

STATEMENTS FROM THE PUBLIC ON AGENDA ITEMS

Pursuant to HRS §92-3, oral testimony may be provided entirely at the beginning of the meeting, or immediately preceding the agenda item being opened for deliberation by the Council.

(NOTE: COUNCIL MAY TAKE A LUNCH BREAK CLOSE TO THE NOON HOUR)

APPROVAL OF MINUTES

August 6, 2025

ORDER OF RESOLUTIONS

[Res. 343-25:](#)

AUTHORIZES THE PAYMENT OF FUNDS OF LATER FISCAL YEARS TO
ENTER INTO A LEASE AGREEMENT FOR ONE MULTIFUNCTION COPY
MACHINE TO BE USED BY THE CIVIL DEFENSE AGENCY

Authorizes the Mayor to enter into a five-year lease agreement with an approximate cost of \$3,000 per year.

Reference: [Comm. 543](#)

Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)

Approve: [FC-95](#)

Res. 344-25:

AUTHORIZES THE PAYMENT OF FUNDS FROM LATER FISCAL YEARS TO ENTER INTO A LICENSING AGREEMENT FOR PROPRIETARY COMPUTER SOFTWARE AND RELATED SERVICES TO BE USED BY THE DEPARTMENT OF INFORMATION TECHNOLOGY

Authorizes the Mayor to enter into a three-year agreement with an approximate annual cost of \$934,000, for continued use of the Microsoft Enterprise Agreement program necessary for numerous County functions and operations.

Reference: [Comm. 544](#)
Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)
Approve: [FC-96](#)

Res. 345-25:

AUTHORIZES THE MAYOR TO ENTER INTO AN INTERGOVERNMENTAL AGREEMENT WITH THE STATE OF HAWAI'I, DEPARTMENT OF LAND AND NATURAL RESOURCES, DIVISION OF FORESTRY AND WILDLIFE, FOR MUTUAL AID AND PUBLIC SAFETY COORDINATION

Authorizes the Hawai'i Fire Department to enter into a mutual aid agreement with the Department of Land and Natural Resources, Division of Forestry and Wildlife, to establish clear working protocols for resource sharing, unified command structures, and coordinated responses in the event of wildfires that exceed either department's individual capacity.

Reference: [Comm. 547](#)
Intr. by: Council Member Kagiwada (B/R)
Approve: [GOEAC-76](#)

Res. 368-25:

AUTHORIZES THE PAYMENT OF FUNDS OF LATER FISCAL YEARS TO ENTER A MULTI-YEAR AGREEMENT FOR PROFESSIONAL SERVICES RELATING TO THE IMPLEMENTATION OF A CAFETERIA PLAN UNDER SECTION 125 OF THE INTERNAL REVENUE CODE TO BE USED BY THE DEPARTMENT OF HUMAN RESOURCES

Authorizes the Mayor to enter into a one year and six month agreement, with options to extend for four subsequent one-year periods, with an approximate annual cost of \$12,000, to furnish and implement a cafeteria plan consisting of health insurance premiums to be designated by the County as eligible for inclusion and two flexible spending accounts.

Reference: [Comm. 573](#)
Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)
Approve: [FC-97](#)

Res. 371-25:

AUTHORIZES THE PAYMENT OF FUNDS OF LATER FISCAL YEARS TO ENTER INTO A LEASE AGREEMENT FOR ONE MULTIFUNCTION COPY MACHINE TO BE USED BY THE MASS TRANSIT AGENCY

Authorizes the Mayor to enter into a five-year lease agreement with an approximate monthly cost of \$183.

Reference: [Comm. 581](#)
Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)
Waived: FC

Res. 372-25:

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT TO PROVIDE A GRANT TO THE BIG ISLAND RESOURCE CONSERVATION AND DEVELOPMENT COUNCIL FOR EXPENSES RELATING TO THE 2025 HAWAI'I ISLAND VETERANS DAY PARADE

Transfers \$1,000 from the Clerk-Council Services – Contingency Relief account (Council District 3); and credits to the Department of Liquor Control, Public Programs account.

Reference: [Comm. 582](#)
Intr. by: Council Member Onishi

Res. 373-25:

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT FOR THE DEPARTMENT OF PARKS AND RECREATION TO PURCHASE 3D PRINTER EQUIPMENT FOR SIGNAGE

Transfers \$1,296 from the Clerk-Council Services – Contingency Relief account (Council District 3); and credits to the Department of Parks and Recreation, Parks Maintenance Equipment account.

Reference: [Comm. 583](#)
Intr. by: Council Member Onishi

[Res. 374-25:](#)

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT TO PROVIDE A GRANT TO THE ALEXANDER AND DUKE DE REGO FOUNDATION FOR THE INSTALLATION OF A NEW SCOREBOARD AT HONOKA'A HIGH SCHOOL FIELD

Transfers \$5,000 from the Clerk-Council Services – Contingency Relief account (Council District 1); and credits to the Department of Parks and Recreation, Administration Other Current Expenses account.

Reference: [Comm. 584](#)

Intr. by: Council Member Kimball

[Res. 378-25:](#)

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT TO PROVIDE A GRANT TO HĀMĀKUA HEALTH CENTER, INC., TO ASSIST WITH EXPENSES FOR ITS PANIOLA IN PALAKA BREAST CANCER AWARENESS COMMUNITY EVENT

Transfers \$1,500 from the Clerk-Council Services – Contingency Relief account (Council District 9); and credits to the Department of Liquor Control, Public Programs account.

Reference: [Comm. 595](#)

Intr. by: Council Member Hustace

[Res. 379-25:](#)

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT TO PROVIDE A GRANT TO MALAMA O PUNA FOR THE EDUCATIONAL AND CULTURAL ENRICHMENT EXCURSION FOR PĀHOA HIGH AND INTERMEDIATE SCHOOL

Transfers \$2,000 from the Clerk-Council Services – Contingency Relief account (Council District 4); and credits to the Department of Liquor Control, Public Programs account.

Reference: [Comm. 596](#)

Intr. by: Council Member Kierkiewicz

[Res. 380-25:](#)

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT FOR THE HAWAI'I FIRE DEPARTMENT'S OCEAN SAFETY OPERATIONS BRANCH TO PURCHASE STORAGE UNITS

Transfers \$13,980 from the Clerk-Council Services – Contingency Relief account (Council District 3); and credits to the Hawai'i Fire Department, Ocean Safety Equipment account.

Reference: [Comm. 597](#)

Intr. by: Council Member Onishi

[Res. 381-25:](#)

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT TO PROVIDE A GRANT TO THE FOOD BASKET INC. FOR ITS KŌKUA HARVEST FRUIT STANDS IN COUNCIL DISTRICT 1

Transfers \$7,500 from the Clerk-Council Services – Contingency Relief account (Council District 1); and credits to the Department of Research and Development, Agriculture Other Current Expenses account.

Reference: [Comm. 598](#)

Intr. by: Council Member Kimball

[Res. 382-25:](#)

TRANSFERS/APPROPRIATES AN APPROPRIATION OUT AND FROM A DESIGNATED FUND ACCOUNT AND CREDITS SAME TO A DESIGNATED FUND ACCOUNT TO PROVIDE A GRANT TO THE BIG ISLAND RESOURCE CONSERVATION AND DEVELOPMENT COUNCIL TO ASSIST WITH EXPENSES RELATING TO THE 2025 HAWAI'I ISLAND VETERANS DAY PARADE

Transfers \$1,000 from the Clerk-Council Services – Contingency Relief account (Council District 7); and credits to the Department of Liquor Control, Public Programs account.

Reference: [Comm. 599](#)

Intr. by: Council Member Villegas

BILLS FOR ORDINANCES (FIRST READING)

[Bill 83:](#)
[\(Draft 2\)](#)

AMENDS CHAPTER 20 OF THE HAWAI'I COUNTY CODE 1983 (2016 EDITION, AS AMENDED), RELATING TO PLASTIC AND POLYSTYRENE WASTE

Seeks to reduce disposable plastic or polystyrene foodware and serviceware in alignment with the County of Hawai'i's Zero Waste Plan and the State of Hawai'i's Aloha+ Challenge Solid Waste Reduction Goals.

Reference: [Comm. 482.10](#)
Intr. by: Council Members Galimba and Villegas
Approve: [PCENRM-3](#)

[Bill 94:](#)

AMENDS ORDINANCE NO. 25-45, AS AMENDED, THE OPERATING BUDGET FOR THE COUNTY OF HAWAI'I FOR THE FISCAL YEAR ENDING JUNE 30, 2026

Increases revenues in the Federal Grants – Emergency Solutions Grants Program account (\$4,045); and appropriates the same to the Emergency Solutions Grants Projects account (\$3,741) and Emergency Solutions Grants Administrative account (\$304).

Reference: [Comm. 545](#)
Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)
Approve: [FC-98](#)

[Bill 95:](#)

AMENDS ORDINANCE NO. 25-45, AS AMENDED, THE OPERATING BUDGET FOR THE COUNTY OF HAWAI'I FOR THE FISCAL YEAR ENDING JUNE 30, 2026

Appropriates revenues in the Federal Grants – Block Grants account (\$43,195) and decreases revenues in the Administrative Planning and Fair Housing account (-\$19,305); and appropriates the same to the Community Development Block Grant Projects account, for a total appropriation of \$62,500.

Reference: [Comm. 546](#)
Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)
Approve: [FC-99](#)

Bill 96:

AMENDS CHAPTER 15, ARTICLE 7, SECTION 15-62, OF THE HAWAI'I COUNTY CODE 1983 (2016 EDITION, AS AMENDED), RELATING TO THE VETERANS ADVISORY COMMITTEE

Amends the Veterans Advisory Committee to no longer require one representative each from the American Legion, Big Island National Guard Retirees Association, Big Island Retired Military Association, and Veterans of Foreign Wars, as well as eight at-large members.

Reference: [Comm. 548](#)
Intr. by: Council Member Hustace
Approve: [PCHSW-6](#)

Bill 101:

AMENDS ORDINANCE NO. 25-46, AS AMENDED, RELATING TO PUBLIC IMPROVEMENTS AND THE FINANCING THEREOF FOR THE FISCAL YEAR ENDING JUNE 30, 2026

Appropriates excess fuel tax revenues collected from fiscal years 2022-2023 and 2023-2024 to the following projects totaling \$1,493,554.75: Roadway Projects (\$448,066.43), Bridge Inspection/Repair (\$298,710.95), and Local Road Projects (\$746,777.37). Funds for these projects shall be provided from fuel tax revenues, in excess of what was projected in Ordinance No. 23-18.

Reference: [Comm. 588](#)
Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)
Waived: FC
Note: Requires 2/3 vote of the entire membership to amend, pursuant to Section 10-6(e), Hawai'i County Charter

ORDER OF THE DAY (SECOND OR FINAL READING)Bill 52:
(Draft 3)

AMENDS CHAPTER 25, ARTICLES 1, 4, AND 5, OF THE HAWAI'I COUNTY CODE 1983 (2016 EDITION, AS AMENDED), RELATING TO HENNERIES

Allows hens for household egg production on single-family, double-family, multiple-family residential, residential-commercial mixed use, and residential and agricultural zoning; provides for certain conditions and regulations.

Reference: [Comm. 286.9](#)
Intr. by: Council Member Kimball
First Reading: October 22, 2025

[Bill 84:](#)

AMENDS CHAPTER 24, ARTICLE 10, DIVISION 7, SECTION 24-292, SCHEDULE 40, OF THE HAWAI'I COUNTY CODE 1983 (2016 EDITION, AS AMENDED), RELATING TO PARKING METER ZONES

Repeals the listing in subsection (c) relating to the eight-hour parking meter zone at the Aupuni Center parking lot.

Reference: [Comm. 501](#)

Intr. by: Council Member Hustace (B/R)

First Reading: October 22, 2025

[Bill 85:](#)
[\(Draft 2\)](#)

AMENDS CHAPTER 15, ARTICLE 8, SECTION 15-68.1, OF THE HAWAI'I COUNTY CODE 1983 (2016 EDITION, AS AMENDED), RELATING TO PARKS

Amends the parks and recreational facility schedule for Kipapa Park to Kīpapa Park 7-7-008:020, 021, 023, 031, 100.

Reference: [Comm. 502.3](#)

Intr. by: Council Member Onishi

First Reading: October 22, 2025

[Bill 88:](#)

AMENDS ORDINANCE NO. 10-32, AS AMENDED, WHICH RECLASSIFIED LANDS FROM SINGLE-FAMILY RESIDENTIAL – 7,500 SQUARE FEET (RS-7.5) AND MULTIPLE-FAMILY RESIDENTIAL – 1,000 SQUARE FEET (RM-1) TO MULTIPLE-FAMILY RESIDENTIAL – 1,500 SQUARE FEET (RM-1.5) AT KŪKŪAU 1ST, SOUTH HILO, HAWAI'I, COVERED BY TAX MAP KEYS: 2-4-025:048, 053, AND 080
(Applicant: Ikaika Ohana) (Area: 5.05 Acres)

The Windward Planning Commission forwards its favorable recommendation for this request to amend Condition D (Complete Construction), which would allow the applicant to start construction no later than January 2026, with an estimated completion timeline of 18-24 months. The property is located at 350 Kapi'olani Street.

Reference: [Comm. 513](#)

Intr. by: Council Member Kimball (B/R)

First Reading: October 22, 2025

Bill 91:

AMENDS ORDINANCE NO. 25-46, AS AMENDED, RELATING TO PUBLIC IMPROVEMENTS AND FINANCING THEREOF FOR THE FISCAL YEAR JULY 1, 2025, TO JUNE 30, 2026

Adds the Public Works Kahakai Boulevard Safe Routes to School - Keonepoko Project (\$530,000) and the Kahakai Boulevard Safe Routes to School – Keonepoko – Federal Project (\$2,100,000) to the Capital Budget. Funds for these projects shall be provided from General Obligation Bonds, Capital Projects Fund – Fund Balance and/or other Sources (\$530,000) and Federal Grants Receivable (\$2,100,000).

Reference: [Comm. 539](#)
Intr. by: Council Member Kāneali‘i-Kleinfelder (B/R)
First Reading: October 22, 2025
Note: Requires 2/3 vote of the entire membership to amend, pursuant to Section 10-6(e), Hawai‘i County Charter

Bill 92:

AMENDS ORDINANCE NO. 25-46, AS AMENDED, RELATING TO PUBLIC IMPROVEMENTS AND FINANCING THEREOF FOR THE FISCAL YEAR JULY 1, 2025, TO JUNE 30, 2026

Increases the Public Works Mohouli Street Rehabilitation Project (\$635,000) and the Mohouli Street Rehabilitation – Federal Project (\$2,550,000) to the Capital Budget. Funds for these projects shall be provided from General Obligation Bonds, Capital Projects Fund – Fund Balance and/or other Sources (\$635,000) and Federal Grants Receivable (\$2,550,000).

Reference: [Comm. 540](#)
Intr. by: Council Member Kāneali‘i-Kleinfelder (B/R)
First Reading: October 22, 2025
Note: Requires 2/3 vote of the entire membership to amend, pursuant to Section 10-6(e), Hawai‘i County Charter

[Bill 93:](#)

AMENDS ORDINANCE NO. 25-45, AS AMENDED, THE OPERATING BUDGET FOR THE COUNTY OF HAWAI'I FOR THE FISCAL YEAR ENDING JUNE 30, 2026

Appropriates revenues in the State Grants – State Substance Abuse Prevention Coordination Grant account (\$50,000); and appropriates the same to the State Substance Abuse Prevention Coordination Grant account.

Reference: [Comm. 541](#)

Intr. by: Council Member Kāneali'i-Kleinfelder (B/R)

First Reading: October 22, 2025

REFERRALS FOR EXECUTIVE SESSION

[Comm. 580:](#)

ESTATE OF JAY ALLEN FREEMAN V. DARIS PACHECO; COUNTY OF HAWAI'I, ET. AL. CIVIL NO. 3CCV-22-0000125

From Deputy Corporation Counsel Justin C. Lee dated August 6, 2025, requesting an attorney-client confidential discussion to consult with the Council regarding the above-entitled matter, including settlement discussion.

The Council anticipates convening an executive meeting regarding the above matter, pursuant to Section 92-5(a)(4), for the purpose of consulting with Council's attorney on questions and issues pertaining to the Council's powers, duties, privileges, immunities, and liabilities. A 2/3 vote pursuant to Hawai'i Revised Statutes, Section 92-4, and Rule Nos. 2 and 10 of the Rules of Procedure of the County Council is necessary to hold an executive meeting.

OTHER BUSINESS

(Including but not limited to reconsideration of vetoed items, if any, or reconsideration of actions on agenda items.)

ANNOUNCEMENTS

ADJOURNMENT

Note: B/R, when listed next to the name of an Introducer, signifies that the Council Member has agreed to introduce legislation "By Request" on behalf of the requesting party. It does not necessarily signify support of or opposition to the proposal.

Live Stream of County Council Meetings: To view the live stream of this meeting, at the scheduled meeting start time, type the following into the address bar of the browser:

http://hawaiiicounty.granicus.com/ViewPublisher.php?view_id=1. Please call (808) 961-8255 if the

Council's streaming location is not functioning. If the Council's stream is deemed inoperable, the following address will be provided for the live stream and should be typed into the browser:
https://www.youtube.com/channel/UCJNalwg4OoK7a_7nGnEtGPA.

If you need an auxiliary aid/service or other accommodation due to a disability, call (808) 961-8255 as soon as possible, preferably by **November 3, 2025**. If a response is received after this date, every effort will be made to obtain the auxiliary aid/service or accommodation, but there is no guarantee the request can be filled. Upon request, this notice is available in alternate formats such as large print, Braille, or electronic copy.

Agenda items are available on the County website at www.hawaiicounty.gov. Click on Council Records to navigate to current agendas. For any questions, please contact Council Services at (808) 961-8255.